

The Claremont City Council held a meeting on Wednesday, May 23, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

At-Large Councilor Jeremy Zullo

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett said Refuse Tax Deed has been moved to the June 27 meeting.

MAYOR’S NOTES

Stevens High School Alumni Week Proclamation

Mayor Lovett presented the Stevens High School Alumni Week proclamation to members of the Stevens High School Alumni.

Public Works Appreciation Presentation

Mayor Lovett said this week is National Public Works Week and it is a time to show appreciation to all the Public Works employees. She said Public Works is in charge of water, sewer, roads, and cemeteries which are essential to our quality of life. She played a short American Public Works Association video showing some of the things Public Works does.

Councilors thanked Public Works staff for all their work.

Mr. O'Hearne asked if a letter of appreciation could be sent from the Council. Mayor Lovett said she would draft it and send it to the Council through Ms. Russell. If the draft meets Councilor's approval, she'll finalize it and leave in the City Manager's office for all to sign.

Mayor Lovett talked about the bear that has been seen in Claremont and Wildlife Services' warnings to put away bird feeders and to not put out pet food at night.

Mayor Lovett said the Memorial Day Parade was set for Monday at 10 a.m. She said it would be nice to have as many Veterans march in the parade as possible. For those with mobility issues, be at Claremont Middle School by 9 a.m. and they will try to match them up with a vehicle. There will be ceremony after the parade in Broad Street Park.

Mayor Lovett said train station hosts' first day at the train station will be on Friday. Volunteers will wear badges and vests. They will help with bags and answer questions about Amtrak travel as well as what there is to do in Claremont and in Charlestown.

CITIZEN'S FORUM

Mark Brislin, Parks & Recreation Director, said the Farmers Market starts this Saturday, May 26, 9 a.m. – 1 p.m. at the Visitors Center green.

Debbie Tardiff, Farmers Market Coordinator, said they have 15-16 vendors signed up. Vendors will have produce, jellies, baked goods, crafts, seedlings, etc. EBT/SNAP can be used at the Market. There is lots of parking. Sandwich board signs will be posted every Thursday to remind everyone that the Market is on Saturday.

Jim Feleen, Ward 2, talked about maintenance at the CSB Community Center and said the resources are inadequate. He passed out a comparison chart of other facilities. He said a properly funded maintenance and preventative maintenance program is a necessity, not a luxury.

Mr. Feleen talked about the land across from Monadnock Park (MacGlaflin land swap) and gave a brief history. He urged the Council to keep this issue moving forward. Mr. McNutt said legal counsel is working on an agreement between the City and Mr. MacGlaflin. The issue is pretty much resolved.

NEW BUSINESS

Petition to Reduce Speed Limit on South Street Discussion

Mr. Pope asked if this petition had gone to the Traffic Advisory Committee (TAC). Mayor Lovett said yes. She said the TAC recommended the speed limit be reduced to 20 mph on South Street from Chestnut Street to the Broad Street intersection. Mr. Pope suggested the 20-mph speed limit should go beyond Southbrook. He said a couple of side streets are blind streets.

Police Chief Mark Chase said the immediate area of concern is the high-traffic area of Claremont Middle School, Sugar River Valley Regional Technical Center, Arrowhead, and the CSB Community Center. There is a Stop sign on each of end of this area. The TAC discussed this and came up with this solution. He said a traffic monitoring study has not been done. The TAC didn't think it was necessary. It is a busy road and it is a truck route.

Mr. Pope said that Baker Street is where a lot of people cross. Chief Chase said that is a dark, blind area and he would not recommend a crosswalk at that area. There is a crosswalk a little further up.

Chief Chase said there are other issues with this area such as lack of sidewalks and trucks using air brakes that will need to be addressed.

Council agreed this should move forward to a first reading.

Approval of Multi-Year Lease Agreement for Police Fleet

A motion was made by Mr. Damren and seconded by Mr. Koloski to authorize the City Manager to enter into a multi-year lease agreement for vehicles and equipment for a term not to exceed three (3) years for the Claremont Police Department, the expenditure for each year of the lease not to exceed \$47,000.00 for the first year of the lease term, said costs included in the 2019 budget. The proposed lease agreement shall contain a termination clause in the event of non-appropriation of sufficient funds for any subsequent year of the lease.

Ms. Walter said this is for five vehicles.

Voice vote: motion carried 8-0.

Authorization to Apply for LCHIP Grant for City Hall Improvements and LCHIP Final Report Update

Nancy Merrill, Planning and Development Director, gave some background on the LCHIP (Land and Community Heritage Investment Program) program. She said the City Hall roof is leaking into the building. A new leak was discovered a few days ago. The estimate for a new copper roof is \$750,000. According to LCHIP, we had to have a historic building assessment. This is to request a construction grant. The windows in this building have to be repaired in place. The report outlines some issues with mechanical and electrical systems. The building has some serious odor issues which Public Works has not been able to pinpoint. This has a 50% match and allows for staff time for the match.

Ms. Merrill said once the grant is awarded, there will be discussions with the Claremont Opera House Board. The whole building was reviewed as part of the assessment including the Opera House.

Ms. Merrill said this building is on the National Historic Register. Mr. McNutt that is an additional 20% federal historic credits we can apply for.

A motion was made by Ms. Kier and seconded by Mr. O’Hearne to authorize the City Manager or his designees to undertake all actions and execute all documents as may be required to apply for LCHIP funding for the purpose of City Hall/Clairemont Opera House restoration and rehabilitation (the Project). Upon notice that the Project has been selected, the Council will entertain a resolution to raise and appropriate funds for the Project, of which 50 percent shall be reimbursed to the City from LCHIP funding.

Voice vote: motion carried 8-0.

Resolution 2018-33 Apply for, Accept and Expend PlanNH Municipal Technical Assistance Grant – Public Hearing

WHEREAS the City of Claremont is applying for a Municipal Technical Assistance Grant in the amount of \$20,000 from Plan NH to hire a consultant to review and recommend changes to the city housing ordinances and draft amendments to the City Code to improve housing development prospects; and

WHEREAS the required local match of 25 percent of the grant award, or \$5,000, shall be a cash match and may be provided by the City or from other funding sources; and

WHEREAS the City has received a grant from the NH Charitable Foundation, on behalf of the Thomas Haas Fund, in the amount of \$5,000 to cover said match;

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept the specified grant funds and to implement the funded project in an amount not to exceed the grant awards as stated above; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$25,000.00 to come from Plan NH Grant funding and NH Charitable Foundation (to have no impact on the tax rate) for the purpose of review and recommendations of city housing ordinances; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Ms. Merrill said the Master Plan Committee finished the Housing chapter in January. These funds will be used to engage a planning consultant to look at zoning. This is a \$20,000 grant that has a \$5,000 match. The City has received a \$5,000 grant from NH Charitable Foundation for the match.

Mayor Lovett said it would be helpful to the Council to get a list from Ms. Merrill of ordinances this grant is going to focus on and that it might be helpful to bring in a member of the Policy Committee.

A motion was made by Mr. Damren and seconded by Mr. Stone to adopt Resolution 2018-33 Apply for, Accept and Expend PlanNH Municipal Technical Assistance Grant.

Mr. Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett – yes

Motion carried 8-0.

Conservation Commission Request to Re-assign Oversight of Rail Trail to Parks and Recreation

Gary Dickerman, Ward 2 resident and Chair of the Conservation Commission, said the Commission would like to have the oversight of the Rail Trail assigned to the Parks and Recreation Department. The Commission sees the Trail as a recreational asset. They met with the Parks and Recreation Commission and the Parks and Recreation Commission was enthusiastic about trying to fund the improvements. There are other areas Conservation Commission would like to spend its resources on.

Mr. Damren asked about funds being spent for upkeep. Mr. Dickerman said before his time, there may have been grants received and spent. He believes most of the upkeep has been done and paid for by the Sullivan County ATV Club.

Mr. O'Hearne asked if the dispute over the usage of the Trail has been resolved. Mayor Lovett said she doesn't believe the federal waiver has been completed.

Steve Wood, Ward 3 resident and Vice Chair of the Conservation Commission, said it was before his tenure that the City took ownership of the abandoned rail line. His impression is that at least a few of the members at that time apparently advocated for the Conservation Commission to take charge and to make improvements to the abandoned rail bed to make it a recreational trail through grants the snowmobile and ATV clubs were able to obtain. At that time, it was one of the main projects of the Conservation Commission. The Conservation

Commission inherited the responsibility of the Rail Trail to continue to oversee the management of the Trail. The long-simmering issue of ATV use on the Trail came up and it is still in limbo as far as the City successfully being able to obtain a waiver for ATVs to use the Trail. That affectively ended support of the ATV club. The Conservation Commission was involved in the recent revision of the City's Master Plan and the Commission's charge involves more than the Rail Trail. There are a lot of issues that they have been neglecting. They are presently trying to address other issues that no other board can or will. The Rail Trail didn't warrant the degree of input they have been giving. They felt they were obliged to have that administrative oversight of the Rail Trail officially designated to the Parks and Recreation Department.

Mr. Wood said when properties are transferred out of current use, a penalty is paid and the Conservation Commission gets a portion.

Mark Brislin, Parks and Recreation Director, said the Rail Trail has a value. Parks and Rec manages approximately 600 acres of parks. The Rail Trail could be a good fit with his department. He is concerned about adding more assets to the department, but reducing the budget. At the last budget meeting, the Council tentatively reduced his budget by \$5,000.

Mr. Wood said maintenance is not currently being done by the Conservation Commission.

Ms. Merrill said the East Street/Bobby Woodman Trail grant is going out in the fall. A section of the Trail from Pleasant Street to Chestnut Street will be redone as part of that grant.

There was discussion that no funds would be needed right now, but going forward, funds will be needed for maintenance.

Mr. McNutt said the City will have to come up with a way, as a community, to maintain this Trail and to have a discussion about what we want it to become.

Eileen Skorowski, Ward 1 resident and Conservation Commission member, said lots of volunteers work to pick up the trash on the Trail.

Mr. Wood said the Conservation Commission is willing to work with Parks and Rec on this.

Mr. Koloski said he is not comfortable going forward with this motion tonight. He suggested we may need to add some money to the Parks and Rec budget for the Rail Trail. He would like more clarity.

Mayor Lovett said she was comfortable moving forward with the motion to change jurisdiction. Nothing changes. Moving forward there will be a need for a maintenance plan.

Mr. Damren agreed to go ahead with this motion. If something untoward comes up, he expects Mr. Brislin would come back to the Council with the request or concern.

A motion was made by Mr. Damren and seconded by Mr. Pope to approve handing off oversight of the Rail Trail to the Parks and Recreation Department effective this meeting (May 23, 2018).

Roll call vote:

Lessard - yes

O’Hearne - no

Stone - yes

Damren - yes

Kier - yes

Koloski - no

Pope - yes

Lovett – yes

Motion carried 6-2 with Mr. Koloski and Mr. O’Hearne voting no.

Resolution 2018-34 Whitewater Reservoir Spillway – Public Hearing

WHEREAS by Resolution 2007-14, the City Council established a City Forest Management Fund (the Fund), pursuant to RSA 34:1-a, for the maintenance, operation and management of city-owned undeveloped land, to be funded by the proceeds from the sale of timber harvested according to the City's Forest Management Plan; and

WHEREAS the City Council found that there is a need for maintenance and improvements to the Whitewater Reservoir Dam Spillway (the “Spillway”) to protect the integrity of the Dam and the safety of the City's water supply; and

WHEREAS the City Council further finds that the maintenance and improvements to the Spillway is the type of management of City-owned land intended by establishment of the Fund;

NOW THEREFORE BE IT RESOLVED to raise, appropriate and expend the sum of up to \$154,000.00 for maintenance and improvements to the Whitewater Reservoir Dam Spillway; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to withdraw the sum of up to \$154,000.00 from the City Forest Management Fund for the purpose of maintenance and improvements to the Whitewater Reservoir Dam Spillway (to have no impact on the tax rate), and also to undertake all actions and execute all documents that may be required to implement this resolution. *(2/3 Vote Required)*

A motion was made by Mr. Pope and seconded by Mr. Stone to adopt Resolution 2018-34 Whitewater Reservoir Spillway.

Mr. Pope read the resolution into the record.

Mayor Lovett opened the public hearing.

Mr. Wood said he is a retired forester and former UNH (University of New Hampshire) Cooperative Extension employee. He said this is a very good example of managed forest land. He said the next big resource fight will be for clean water and we are really blessed with really good sources of that.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett – yes

Motion carried 8-0.

Refuse Tax Deed

Moved to the June 13, 2018, Council meeting.

Overspend 2018 Airport Budget

Ms. Walter said the Airport budget takes in revenue after it sells the gas, so it is usually a wash.

A motion was made by Mr. Koloski and seconded by Mr. Damren:

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, to overspend the 2018 Airport budget, Account #01-472-360-0000, as approved, by up to \$20,000 for the purchase of aviation fuel, such expense to be offset by increased revenue from the sale of aviation fuel.

Such department over-expenditure shall not exceed the total bottom line appropriated for 2018.

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 Vote Required)

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett – yes

Motion carried 8-0.

Transfer Funds Between Departments

Ms. Walter said Public Works spent a lot for winter maintenance this year. Assessing has not hired a permanent Assessor, so we are still using a contracted Assessor. The money will come from the Police Department which has about \$250,000 left in its budget.

A motion was made by Mr. Koloski and seconded by Ms. Kier that the Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments such funds having been raised and appropriated in the 2018 City budget.

Transfer to Streets & Roads Budget (441)	<u>\$48,000.00</u>
Transfer to Assessing Budget (414)	<u>\$10,000.00</u>
Transfer from Police Budget (421)	<u>\$58,000.00</u>
<i>Total to be transferred</i>	<i>\$58,000.00</i>

Voice vote: motion carried 8-0.

Auction Update

Mr. McNutt said the Tax Deeded Property Auction will be June 2, 11 a.m., at CSBCC. There are six properties; four are land only. Abutters have been notified of the auction.

Preparations for Memorial Day and Alumni Day Weekend

Mayor Lovett said the Memorial Day Parade starts at 10 a.m. She asked that Veterans participate in the parade.

Mr. McNutt said Public Works is working on the downtown (i.e. street sweeping). He has emphasized to Pleasant Street businesses to take extra care to clean up their storefronts for the Memorial Day Parade and the Alumni Parade.

Mayor Lovett said it would be nice if businesses would decorate their windows. She thanked Chuck Allen, Arrowhead Recreation Club, for arranging to have the flag on Flat Rock replaced.

Mayor Lovett said the Farmers Market will be open on June 9 and that this is the same day as the Alumni Parade. Mr. McNutt will talk with Mr. Brislin about it.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Koloski said he would like an update on the status of the Rail Trail waiver for motorized vehicle access.

Mr. Koloski asked if overnight parking is allowed in the parking lot by the Visitors Center, because a boat is being parked there overnight. Mr. McNutt will check.

Mayor Lovett said the next meeting will be May 31 for budget discussion. Regular Council meeting will be on June 13. Joint meeting of the Council/School Board is also in June. She will work on the letter of appreciation for Public Works.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:28 p.m., a motion was made by Mr. O’Hearne and seconded by Ms. Lessard to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council